

COMMITTEE ON FINANCE
SENATE AMENDMENTS TO S.B. 1165
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 20, chapter 4, article 3, Arizona Revised
3 Statutes, is amended by adding section 20-841.14, to read:

4 20-841.14. Breast examinations; cost sharing; exception;
5 definitions

6 A. A HOSPITAL SERVICE CORPORATION OR MEDICAL SERVICE CORPORATION
7 THAT ISSUES, AMENDS, DELIVERS OR RENEWS A SUBSCRIPTION CONTRACT ON OR
8 AFTER JANUARY 1, 2027 MAY NOT IMPOSE COST SHARING REQUIREMENTS FOR
9 ~~[DIAGNOSTIC BREAST EXAMINATIONS AND SUPPLEMENTAL BREAST EXAMINATIONS]~~
10 ~~[PREVENTATIVE SCREENING SERVICES FOR BREAST CANCER OR FOR ADDITIONAL~~
11 ~~SCREENING SERVICES REQUIRED TO COMPLETE THE SCREENING CONTINUUM].~~

12 B. IF A SUBSCRIPTION CONTRACT INCLUDES A HIGH DEDUCTIBLE HEALTH
13 PLAN AS DEFINED IN 26 UNITED STATES CODE SECTION 223(c)(2)(A), SUBSECTION
14 A OF THIS SECTION APPLIES AFTER THE DEDUCTIBLE IS MET, EXCEPT THAT IF THE
15 ITEMS OR SERVICES ARE PREVENTIVE AS PRESCRIBED IN 26 UNITED STATES CODE
16 SECTION 223(c)(2)(C), SUBSECTION A OF THIS SECTION APPLIES REGARDLESS OF
17 WHETHER THE MINIMUM DEDUCTIBLE UNDER 26 UNITED STATES CODE SECTION 223 HAS
18 BEEN MET.

19 C. FOR THE PURPOSES OF THIS SECTION:

20 [1. "ADDITIONAL SCREENING SERVICES" INCLUDES A DIAGNOSTIC BREAST
21 EXAMINATION AND A SUPPLEMENTAL BREAST EXAMINATION.]

22 [1.][2.] "COST SHARING" MEANS A DEDUCTIBLE, COINSURANCE, COPAYMENT
23 OR MAXIMUM LIMITATION ON THE APPLICATION OF THE DEDUCTIBLE, COINSURANCE,
24 COPAYMENT OR SIMILAR OUT-OF-POCKET EXPENSE.

25 [2.][3.] "DIAGNOSTIC BREAST EXAMINATION":

26 (a) MEANS A MEDICALLY NECESSARY AND APPROPRIATE EXAMINATION OF THE
27 BREAST IN ACCORDANCE WITH THE NATIONAL COMPREHENSIVE CANCER NETWORK
28 GUIDELINES.

1 (b) INCLUDES AN EXAMINATION OF THE BREAST USING CONTRAST ENHANCED
2 MAMMOGRAPHY, DIAGNOSTIC MAMMOGRAPHY, BREAST MAGNETIC RESONANCE IMAGING OR
3 BREAST ULTRASOUND OR MOLECULAR BREAST IMAGING THAT IS USED TO EITHER:
4 (i) EVALUATE AN ABNORMALITY THAT IS SEEN OR SUSPECTED FROM A
5 SCREENING EXAMINATION FOR BREAST CANCER.
6 (ii) EVALUATE AN ABNORMALITY THAT IS DETECTED BY ANOTHER MEANS OF
7 EXAMINATION.
8 [4. "PREVENTATIVE SCREENING SERVICE FOR BREAST CANCER" MEANS
9 SCREENING MAMMOGRAPHY AS DEFINED IN SECTION 30-651.]
10 ~~[3.]~~[5.] "SUPPLEMENTAL BREAST EXAMINATION":
11 (a) MEANS A MEDICALLY NECESSARY AND APPROPRIATE EXAMINATION OF THE
12 BREAST IN ACCORDANCE WITH THE NATIONAL COMPREHENSIVE CANCER NETWORK
13 GUIDELINES.
14 (b) INCLUDES AN EXAMINATION OF THE BREAST USING CONTRAST ENHANCED
15 MAMMOGRAPHY, BREAST MAGNETIC RESONANCE IMAGING OR BREAST ULTRASOUND OR
16 MOLECULAR BREAST IMAGING THAT IS BOTH:
17 (i) USED TO SCREEN FOR BREAST CANCER WHEN THERE IS NO ABNORMALITY
18 SEEN OR SUSPECTED.
19 (ii) BASED ON A PERSONAL OR FAMILY MEDICAL HISTORY OR ADDITIONAL
20 FACTORS THAT INCREASE AN INDIVIDUAL'S RISK OF BREAST CANCER, INCLUDING
21 HETEROGENOUS OR EXTREMELY DENSE BREASTS.
22 Sec. 2. Title 20, chapter 4, article 9, Arizona Revised Statutes,
23 is amended by adding section 20-1057.21, to read:
24 20-1057.21. Breast examinations; cost sharing; exception;
25 definitions
26 A. A HEALTH CARE SERVICES ORGANIZATION THAT ISSUES, AMENDS,
27 DELIVERS OR RENEWS AN EVIDENCE OF COVERAGE ON OR AFTER JANUARY 1, 2027 MAY
28 NOT IMPOSE COST SHARING REQUIREMENTS ~~[FOR DIAGNOSTIC BREAST EXAMINATIONS~~
29 ~~AND SUPPLEMENTAL BREAST EXAMINATIONS]~~ [PREVENTATIVE SCREENING SERVICES FOR
30 BREAST CANCER OR FOR ADDITIONAL SCREENING SERVICES REQUIRED TO COMPLETE
31 THE SCREENING CONTINUUM].
32 B. IF AN EVIDENCE OF COVERAGE INCLUDES A HIGH DEDUCTIBLE HEALTH
33 PLAN AS DEFINED IN 26 UNITED STATES CODE SECTION 223(c)(2)(A), SUBSECTION
34 A OF THIS SECTION APPLIES AFTER THE DEDUCTIBLE IS MET, EXCEPT THAT IF THE
35 ITEMS OR SERVICES ARE PREVENTIVE AS PRESCRIBED IN 26 UNITED STATES CODE
36 SECTION 223(c)(2)(C), SUBSECTION A OF THIS SECTION APPLIES REGARDLESS OF
37 WHETHER THE MINIMUM DEDUCTIBLE UNDER 26 UNITED STATES CODE SECTION 223 HAS
38 BEEN MET.
39 C. FOR THE PURPOSES OF THIS SECTION:
40 [1. "ADDITIONAL SCREENING SERVICES" INCLUDES A DIAGNOSTIC BREAST
41 EXAMINATION AND A SUPPLEMENTAL BREAST EXAMINATION.]
42 ~~[1.]~~[2.] "COST SHARING" MEANS A DEDUCTIBLE, COINSURANCE, COPAYMENT
43 OR MAXIMUM LIMITATION ON THE APPLICATION OF THE DEDUCTIBLE, COINSURANCE,
44 COPAYMENT OR SIMILAR OUT-OF-POCKET EXPENSE.
45 ~~[2.]~~[3.] "DIAGNOSTIC BREAST EXAMINATION":

1 (a) MEANS A MEDICALLY NECESSARY AND APPROPRIATE EXAMINATION OF THE
2 BREAST IN ACCORDANCE WITH THE NATIONAL COMPREHENSIVE CANCER NETWORK
3 GUIDELINES.

4 (b) INCLUDES AN EXAMINATION OF THE BREAST USING CONTRAST ENHANCED
5 MAMMOGRAPHY, DIAGNOSTIC MAMMOGRAPHY, BREAST MAGNETIC RESONANCE IMAGING OR
6 BREAST ULTRASOUND OR MOLECULAR BREAST IMAGING THAT IS USED TO EITHER:

7 (i) EVALUATE AN ABNORMALITY THAT IS SEEN OR SUSPECTED FROM A
8 SCREENING EXAMINATION FOR BREAST CANCER.

9 (ii) EVALUATE AN ABNORMALITY THAT IS DETECTED BY ANOTHER MEANS OF
10 EXAMINATION.

11 [4. "PREVENTATIVE SCREENING SERVICES FOR BREAST CANCER" MEANS
12 SCREENING MAMMOGRAPHY AS DEFINED IN SECTION 30-651.]

13 [3.][5.] "SUPPLEMENTAL BREAST EXAMINATION":

14 (a) MEANS A MEDICALLY NECESSARY AND APPROPRIATE EXAMINATION OF THE
15 BREAST IN ACCORDANCE WITH THE NATIONAL COMPREHENSIVE CANCER NETWORK
16 GUIDELINES.

17 (b) INCLUDES AN EXAMINATION OF THE BREAST USING CONTRAST ENHANCED
18 MAMMOGRAPHY, BREAST MAGNETIC RESONANCE IMAGING OR BREAST ULTRASOUND OR
19 MOLECULAR BREAST IMAGING THAT IS BOTH:

20 (i) USED TO SCREEN FOR BREAST CANCER WHEN THERE IS NO ABNORMALITY
21 SEEN OR SUSPECTED.

22 (ii) BASED ON A PERSONAL OR FAMILY MEDICAL HISTORY OR ADDITIONAL
23 FACTORS THAT INCREASE AN INDIVIDUAL'S RISK OF BREAST CANCER, INCLUDING
24 HETEROGENOUS OR EXTREMELY DENSE BREASTS.

25 Sec. 3. Title 20, chapter 6, article 4, Arizona Revised Statutes,
26 is amended by adding section 20-1376.11, to read:

27 20-1376.11. Breast examinations; cost sharing; exception;
28 definitions

29 A. A DISABILITY INSURER THAT ISSUES, AMENDS, DELIVERS OR RENEWS A
30 POLICY ON OR AFTER JANUARY 1, 2027 MAY NOT IMPOSE COST SHARING
31 REQUIREMENTS FOR [DIAGNOSTIC BREAST EXAMINATIONS AND SUPPLEMENTAL BREAST
32 EXAMINATIONS] [PREVENTATIVE SCREENING SERVICES FOR BREAST CANCER OR FOR
33 ADDITIONAL SCREENING SERVICES REQUIRED TO COMPLETE THE SCREENING
34 CONTINUUM].

35 B. IF A POLICY INCLUDES A HIGH DEDUCTIBLE HEALTH PLAN AS DEFINED IN
36 26 UNITED STATES CODE SECTION 223(c)(2)(A), SUBSECTION A OF THIS SECTION
37 APPLIES AFTER THE DEDUCTIBLE IS MET, EXCEPT THAT IF THE ITEMS OR SERVICES
38 ARE PREVENTIVE AS PRESCRIBED IN 26 UNITED STATES CODE SECTION
39 223(c)(2)(C), SUBSECTION A OF THIS SECTION APPLIES REGARDLESS OF WHETHER
40 THE MINIMUM DEDUCTIBLE UNDER 26 UNITED STATES CODE SECTION 223 HAS BEEN
41 MET.

1 C. FOR THE PURPOSES OF THIS SECTION:

2 [1. "ADDITIONAL SCREENING SERVICES" INCLUDES A DIAGNOSTIC BREAST
3 EXAMINATION AND A SUPPLEMENTAL BREAST EXAMINATION.]

4 ~~[1.]~~[2.] "COST SHARING" MEANS A DEDUCTIBLE, COINSURANCE, COPAYMENT
5 OR MAXIMUM LIMITATION ON THE APPLICATION OF THE DEDUCTIBLE, COINSURANCE,
6 COPAYMENT OR SIMILAR OUT-OF-POCKET EXPENSE.

7 ~~[2.]~~[3.] "DIAGNOSTIC BREAST EXAMINATION":

8 (a) MEANS A MEDICALLY NECESSARY AND APPROPRIATE EXAMINATION OF THE
9 BREAST IN ACCORDANCE WITH THE NATIONAL COMPREHENSIVE CANCER NETWORK
10 GUIDELINES.

11 (b) INCLUDES AN EXAMINATION OF THE BREAST USING CONTRAST ENHANCED
12 MAMMOGRAPHY, DIAGNOSTIC MAMMOGRAPHY, BREAST MAGNETIC RESONANCE IMAGING OR
13 BREAST ULTRASOUND OR MOLECULAR BREAST IMAGING THAT IS USED TO EITHER:

14 (i) EVALUATE AN ABNORMALITY THAT IS SEEN OR SUSPECTED FROM A
15 SCREENING EXAMINATION FOR BREAST CANCER.

16 (ii) EVALUATE AN ABNORMALITY THAT IS DETECTED BY ANOTHER MEANS OF
17 EXAMINATION.

18 [4. "PREVENTATIVE SCREENING SERVICES FOR BREAST CANCER" MEANS
19 SCREENING MAMMOGRAPHY AS DEFINED IN SECTION 30-651.]

20 ~~[3.]~~[5.] "SUPPLEMENTAL BREAST EXAMINATION":

21 (a) MEANS A MEDICALLY NECESSARY AND APPROPRIATE EXAMINATION OF THE
22 BREAST IN ACCORDANCE WITH THE NATIONAL COMPREHENSIVE CANCER NETWORK
23 GUIDELINES.

24 (b) INCLUDES AN EXAMINATION OF THE BREAST USING CONTRAST ENHANCED
25 MAMMOGRAPHY, BREAST MAGNETIC RESONANCE IMAGING OR BREAST ULTRASOUND OR
26 MOLECULAR BREAST IMAGING THAT IS BOTH:

27 (i) USED TO SCREEN FOR BREAST CANCER WHEN THERE IS NO ABNORMALITY
28 SEEN OR SUSPECTED.

29 (ii) BASED ON A PERSONAL OR FAMILY MEDICAL HISTORY OR ADDITIONAL
30 FACTORS THAT INCREASE AN INDIVIDUAL'S RISK OF BREAST CANCER, INCLUDING
31 HETEROGENOUS OR EXTREMELY DENSE BREASTS.

32 Sec. 4. Title 20, chapter 6, article 5, Arizona Revised Statutes,
33 is amended by adding section 20-1406.11, to read:

34 20-1406.11. Breast examinations; cost sharing; exception;
35 definitions

36 A. A GROUP OR BLANKET DISABILITY INSURER THAT ISSUES, AMENDS,
37 DELIVERS OR RENEWS A POLICY ON OR AFTER JANUARY 1, 2027 MAY NOT IMPOSE
38 COST SHARING REQUIREMENTS FOR ~~[DIAGNOSTIC BREAST EXAMINATIONS AND~~
39 ~~SUPPLEMENTAL BREAST EXAMINATIONS]~~ [PREVENTATIVE SCREENING SERVICES FOR
40 BREAST CANCER OR FOR ADDITIONAL SCREENING SERVICES REQUIRED TO COMPLETE
41 SCREENING CONTINUUM].

42 B. IF A POLICY INCLUDES A HIGH DEDUCTIBLE HEALTH PLAN AS DEFINED IN
43 26 UNITED STATES CODE SECTION 223(c)(2)(A), SUBSECTION A OF THIS SECTION
44 APPLIES AFTER THE DEDUCTIBLE IS MET, EXCEPT THAT IF THE ITEMS OR SERVICES
45 ARE PREVENTIVE AS PRESCRIBED IN 26 UNITED STATES CODE SECTION
46 223(c)(2)(C), SUBSECTION A OF THIS SECTION APPLIES REGARDLESS OF WHETHER

1 THE MINIMUM DEDUCTIBLE UNDER 26 UNITED STATES CODE SECTION 223 HAS BEEN
2 MET.

3 C. FOR THE PURPOSES OF THIS SECTION:

4 [1. "ADDITIONAL SCREENING SERVICES" INCLUDES A DIAGNOSTIC BREAST
5 EXAMINATION AND A SUPPLEMENTAL BREAST EXAMINATION.]

6 [1.][2.] "COST SHARING" MEANS A DEDUCTIBLE, COINSURANCE, COPAYMENT
7 OR MAXIMUM LIMITATION ON THE APPLICATION OF THE DEDUCTIBLE, COINSURANCE,
8 COPAYMENT OR SIMILAR OUT-OF-POCKET EXPENSE.

9 [2.][3.] "DIAGNOSTIC BREAST EXAMINATION":

10 (a) MEANS A MEDICALLY NECESSARY AND APPROPRIATE EXAMINATION OF THE
11 BREAST IN ACCORDANCE WITH THE NATIONAL COMPREHENSIVE CANCER NETWORK
12 GUIDELINES.

13 (b) INCLUDES AN EXAMINATION OF THE BREAST USING CONTRAST ENHANCED
14 MAMMOGRAPHY, DIAGNOSTIC MAMMOGRAPHY, BREAST MAGNETIC RESONANCE IMAGING OR
15 BREAST ULTRASOUND OR MOLECULAR BREAST IMAGING THAT IS USED TO EITHER:

16 (i) EVALUATE AN ABNORMALITY THAT IS SEEN OR SUSPECTED FROM A
17 SCREENING EXAMINATION FOR BREAST CANCER.

18 (ii) EVALUATE AN ABNORMALITY THAT IS DETECTED BY ANOTHER MEANS OF
19 EXAMINATION.

20 [4. "PREVENTATIVE SCREENING SERVICES FOR BREAST CANCER" MEANS
21 SCREENING MAMMOGRAPHY AS DEFINED IN SECTION 30-651.]

22 [5.][5.] "SUPPLEMENTAL BREAST EXAMINATION":

23 (a) MEANS A MEDICALLY NECESSARY AND APPROPRIATE EXAMINATION OF THE
24 BREAST IN ACCORDANCE WITH THE NATIONAL COMPREHENSIVE CANCER NETWORK
25 GUIDELINES.

26 (b) INCLUDES AN EXAMINATION OF THE BREAST USING CONTRAST ENHANCED
27 MAMMOGRAPHY, BREAST MAGNETIC RESONANCE IMAGING OR BREAST ULTRASOUND OR
28 MOLECULAR BREAST IMAGING THAT IS BOTH OF THE FOLLOWING:

29 (i) USED TO SCREEN FOR BREAST CANCER WHEN THERE IS NO ABNORMALITY
30 SEEN OR SUSPECTED.

31 (ii) BASED ON A PERSONAL OR FAMILY MEDICAL HISTORY OR ADDITIONAL
32 FACTORS THAT INCREASE AN INDIVIDUAL'S RISK OF BREAST CANCER, INCLUDING
33 HETEROGENOUS OR EXTREMELY DENSE BREASTS.

34 Enroll and engross to conform

35 Amend title to conform

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